

Kalyan Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 10 January 2020 · Writ-C No. 743 of 2020 · **Writ disposed; EE to hear objections and pass a speaking final order; residual challenge left to s.127; recovery stayed seven weeks.**

HEADNOTE

A consumer's writ seeking quashing of a demand notice and recovery citation, on the plea of no hearing and non-compliance with the U.P. Electricity Supply Code, 2005, was disposed without examining those merits. The Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for seven weeks, and left any challenge to that final order to an appeal under section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Kalyan Singh filed a writ against U.P. Power Corporation Ltd. seeking quashing of a demand notice dated 16 February 2019 and a recovery citation dated 13 November 2019. He contended that the licensee was taking coercive recovery without any opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. The Division Bench heard his counsel and counsel for the electricity department and disposed of the petition on directions for a departmental hearing.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to section 127 after departmental final order

HOLDING

Without deciding the validity of the demand notice or recovery citation, the Court directed the petitioner to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks of that hearing, stayed coercive recovery for seven weeks or until disposal of the objection (whichever earlier), and relegated any challenge to that final order to an appeal under section 127 of the Electricity Act, 2003. Non-appearance or default in filing the objection automatically revived the recovery citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections, the Court left any remaining grievance to a section 127 appeal and did not quash the demand or recovery on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE AND RECOVERY CITATION COMPLIED WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court directed a departmental hearing instead of examining the Supply Code non-compliance plea. ¶ 1

NOT DECIDED — MERITS AND QUANTUM OF THE IMPUGNED DEMAND

Left to the Executive Engineer's speaking final order and, if still aggrieved, to a section 127 appeal. ¶ 1